DERRICK LAMONT BEVERLY
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Superior Court of California,
County of Los Angeles
9/08/2026 12:00 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By D. Diaz, Deputy Clerk**

**STANLEY-MOSK SUPERIOR COURTHOUSE
FOR THE STATE OF CALIFORNIA
IN THE COUNTY OF LOS ANGELES
FILED IN CENTRAL DISTRICT - JURISDICTION**

FOX NORMANDIE APARTMENTS, L.P.,	Case No. 22STUD06657
Plaintiff,	STATEMENT OF FACTS AND AUTHORITIES RE APPEAL PRESERVATION AND RECORD DESIGNATION
v.	
DERRICK L. BEVERLY, et al.,	Limited Civil / Unlawful Detainer
Defendants.	

I. RELEVANT FACTS

On September 2, 2026, the trial court denied Defendant's postjudgment motion. The ruling addressed Code of Civil Procedure section 1008 and the asserted Code of Civil Procedure section 473(d) challenge, including the court's reliance on Evidence Code section 647. The clerk's separate Certificate of Mailing is dated September 3, 2026.

II. APPELLATE PRESERVATION

California Rules of Court, rule 8.821 requires a signed notice of appeal from an appealable judgment or order in a limited civil case. Rule 8.831 requires the appellant to serve and file a notice designating the record within 10 days after the notice of appeal and permits the designation to be filed concurrently.

III. RECORD CONTROL

The designation seeks a clerk's transcript containing the identified service, default, postjudgment, ruling, and notice records, and elects a statement on appeal concerning the September 2, 2026 hearing, subject to the requirements governing preparation and settlement of that statement.

IV. RESERVATION

Nothing in this filing concedes the correctness of the clerk's September 3 mailing address, the scope or appealability of any separate component of the September 2 ruling, or any disputed merits issue.

Dated: September 3, 2026

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DERRICK LAMONT BEVERLY
Defendant/Appellant, In Propria Persona, Sui Juris